

## OF RESULTING TRUSTS.

**Classification of trusts by operation of law.**—HAVING discussed the various questions involved in the creation of trusts by the act of a party, we shall next direct our attention to the creation of trusts by operation of law. Trusts of this kind may be regarded as twofold, viz. 1. Resulting. 2. Constructive.

**Subdivision of resulting trusts.**—Resulting Trusts,<sup>1</sup> the subject of the present chapter, may be subdivided into the two

<sup>1</sup> **RESULTING TRUSTS.**—*Definition.*—There is a “class of trusts which result in law, from the acts of parties whether they intended to create a trust or not;” 1 Perry on Trusts, § 124. “In all species of resulting trusts intention is an essential element, although that intention is never expressed by any words of direct creation. There must be a transfer, and equity infers the intention that the transferee was not to receive and hold the legal title as the beneficial owner, but that a trust was to arise in favor of the party whom equity would regard as the beneficial owner under the circumstances;” 2 Pom. Eq. Jur. § 1031; 2 Story Eq. Jur. § 1195.

*Title taken in name of one, consideration paid by another.*—The most important as well as the most numerous class of resulting trusts arise in this way, the holder of the legal title becoming a trustee, another furnishing money; 1 Perry on Trusts, § 126; 2 Pom. Eq. Jur. § 1037; Williams v. Hollingsworth, 1 Strob. Eq. 103; 47 Am. Dec. 527; Baker v. Vining, 30 Me. 121; 50 Am. Dec. 617; Foote v. Colvin, 3 Johns. 216; 3 Am. Dec. 478; Jackson v. Matsdorf, 11 Johns. 91; 6 Am. Dec. 355; Strimpf v. Roberts, 18 Pa. St. 283; 57 Am. Dec. 606; Lisloff v. Hart, 25 Miss. 245; 57 Am. Dec. 203; Ins. Co. v. Deale, 18 Md. 26; 79 Am. Dec. 673; Jackson v. Miller, 6 Wend. 228; 21 Am. Dec. 316; Dudley v. Bosworth, 10 Humph. 9; 51 Am. Dec. 690; Pinnock v. Clough, 16 Vt. 500; 42 Am. Dec. 521; Lee v. Browder, 51 Ala. 288; Peabody v. Tarbell, 2 Cush. 227; Hampson v. Fall, 64 Ind. 382; Murphy v. Peabody, 63 Ga. 522; Blodgett v. Hildreth, 103 Mass. 484; Mershon v. Duer, 40 N. J. Eq. 333; Scheerer v. Scheerer, 109 Ill. 11; Laws v. Law, 76 Va. 527; Sherburne v. Morse, 132 Mass. 469; Lawry v. Spaulding, 73 Me. 31; Robinson v. Leflore, 59 Miss. 148; but see Minn. Statutes and Donlin v. Bradley, 119 Ill. 412. Payment must have been actually made, or an obligation to pay given, or no trust will be raised; 2 Pom. Eq. Jur. § 1037.

*Part payment of consideration.*—A trust results whether the title is taken in the name of one or two or more jointly, and payment of a part of the purchase-price will create a trust *pro tanto*, as two or more advance the money and the title is taken in the name of one; Case v. Codding, 38 Cal. 191; Dow